



NIXON PEABODY LLP
ATTORNEYS AT LAW

NIXONPEABODY.COM
@NIXONPEABODYLLP

Eric C. Jeffrey
Counsel
ejeffrey@nixonpeabody.com

Nixon Peabody LLP
799 9th Street NW
Suite 500
Washington, DC 20001-4501
202-585-8000

May 16, 2017

VIA FIRST CLASS MAIL

Ms. Rachel Dickon
Assistant Secretary of Federal Maritime Commission
800 North Capitol St.
Room 1046
Washington, D.C. 20573

Re: Docket No. 15-11 – Ovchinnikov v. Hitrinov

Dear Ms. Dickon:

Enclosed for filing in the above-captioned matter are an original true copy and five (5) additional copies of:

1. Respondents' Motion for Extension of Time and Enlargement of Page Limits

If you have any questions, please do not hesitate to contact me.

Best regards,

Eric Jeffrey / cr
Eric Jeffrey

Enclosures

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

DOCKET NO. 15-11

IGOR OVCHINNIKOV, ET AL

v.

MICHAEL HITRINOV ET AL

Consolidated With
DOCKET NO. 1953(I)

KAIRAT NURGAZINOV, ET AL

v.

MICHAEL HITRINOV ET AL

**RESPONDENTS' MOTION FOR EXTENSION OF TIME AND ENLARGEMENT OF
PAGE LIMITS**

Pursuant to Rules 69, 71, and 227, Respondents respectfully request an extension of both the time and page limits otherwise applicable to their Reply to Exceptions. The good cause supporting these requests is set forth below.

Respondents and the undersigned have reached an arrangement that would allow the undersigned to be engaged for the purpose of preparing Respondents' Reply to Exceptions. That

arrangement is contingent upon: (i) prompt receipt of payment, and (ii) grant of the necessary time and space to prepare the Reply.¹ This motion addresses the second of those two conditions.

1. **Page Limits.** Complainants requested and received eighteen additional pages above the 50 pages permitted by the FMC's Rules. The basis of the grant was the size of the record. See Order dated May 1, 2017. The size of the record is the same for Respondents as it was for Complainants,² so fundamental fairness requires that Respondents be allowed the same number of extra pages.

2. **Time.** Complainants received a 33-day extension, until May 3, 2017, of the original deadline for filing Exceptions of March 31, 2017. Respondents request only a 29-day extension, to June 23, 2017. Apart from fundamental fairness, such extension is required by significant limitations on the undersigned's availability resulting from pre-existing obligations, which became relevant only due to the second grant of additional time to Complainants:

- The undersigned has not been able to begin on the Reply due, not only to the absence of an engagement by Respondents, but also as a result of prior obligations to the United States Department of Justice relating to its investigations into the activities of ocean common carriers. Such obligations consumed the vast majority of my time since the

¹ Upon satisfaction of both conditions, the undersigned will withdraw his Motion for Leave to Withdraw.

² That Complainants used only 61 of their 68 pages is immaterial. If Respondents can adequately address the issues in less than 68 pages, we will do so. Further, Complainants' exceptions are based almost exclusively on regulatory regimes and statutes other than the Shipping Act, entirely within the jurisdiction of by federal agencies other than the Commission, and based on arguments never made to the Presiding Officer. Although to our mind such argument conclusively demonstrates that there is nothing for the Commission to adjudicate, it remains necessary not only to show why Complainants' are not entitled to rely on such statutes and regulations, much less their own mis-interpretations of such authority, but also why (i) they have waived any such argument by not raising it below, and (ii) they are wrong even on their own terms. And as my former mentor was fond of saying, it invariably takes less space to assert mis-statements fact and law than it does to correct them.

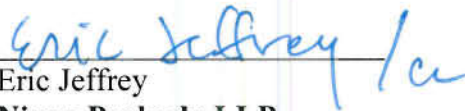
Exceptions were filed, weekends included, through May 11. As a result, I have been unable to do any more than briefly skim the Exceptions.

- On May 11, 2017, I left the country to attend long-arranged meetings of two ocean carrier agreements regulated by the Commission, in connection with which I am also taking a few days personal time off. The tickets were purchased and reservations made before the Initial Decision was filed, and well before Complainants received two separate extensions of time.
- I return to the country on Friday, May 19, 2017. On May 20, I leave town to attend the unveiling of my father's grave.³
- After my return to the office on May 22, 2017, I will continue to have a rather full plate, including not only the usual backlog after an absence, but also continued obligations to DOJ and to the Commission in connection with the preparation of a reply brief(s) before Judge Wirth in the four pending class action complaints in FMC Dockets No. 16-01, No. 16-07, No. 16-10, and No. 16-11.

³ Under Jewish tradition, an unveiling is held eleven months after burial of the deceased, which occurred in June, 2016.

For the foregoing reasons, Respondents believe that there is more than good cause for the Commission to grant them additional pages up to eighteen and additional time through June 23, 2017.

Respectfully submitted,

A handwritten signature in blue ink, appearing to read "Eric Jeffrey /c", is written over a horizontal line.

Eric Jeffrey

Nixon Peabody LLP

799 9th Street, N.W., Suite 500

Washington, D.C. 20001

202-585-8000

Dated: May 16, 2017

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing Respondents' Motion for Extension of Time and Enlargement of Page Limits by U.S. Mail, First-Class, Postage Prepaid and E-Mail to the following:

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Seth M. Katz, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Date: May 16, 2017


Carolyn Lowry
Nixon Peabody LLP